

Superior Court of Washington, County of _____

In the Guardianship of:

Respondent/s (*minors/children*)

Case Number: _____

Objection to Minor Guardianship

(Clerk Code: OB)

Objection to Minor Guardianship

Use this form if you disagree with any type of *Minor Guardianship Petition* (regular, emergency, or standby).

1. Name

Look at each section of the *Petition and Reasons for Guardianship*, if one was served on you. Now fill out below.

I am (*name*) _____, and my relationship to
the children in this case is _____.

2. Your Objection

☐ I agree to the appointment of the proposed guardian, but I have other objections or requests as listed below.

☐ I object to the appointment of a guardian for the minor children in this case because (*check all that apply*):

☐ a parent is willing and able to perform parenting functions. (*Minor Guardianship*)

☐ a parent will be willing and able to perform parenting functions during the next two-year period. (*Standby Guardianship*)

☐ a person is willing, able, and has authority to act in the circumstances and prevent substantial harm to the children. (*Emergency Minor Guardianship*)

Explain: _____

☐ The appointment of (*name*) _____
as guardian is not in the best interest of the children because:

☐ The court should appoint (*name*) _____
as guardian for the children because:

☐ Other reasons a guardianship is inappropriate:

3. Request

I ask the court to (*check all that apply*):

- ☐ deny the *Petition*.
- ☐ grant the proposed *Petition* but appoint the guardian I proposed.
- ☐ appoint the proposed guardians but grant my requests in sections 4 - 7 below.
- ☐ appoint a lawyer for me. (*Fill out Motion to Appoint Lawyer* form GDN ALL 021).

4. Parents' Visitation

If the court appoints a guardian (*check one*):

- ☐ I have no request about parents' visitation.
- ☐ I agree with what the *Petition* proposed about parents' visitation.
- ☐ I ask the court to approve the following visitation schedule for the parents:

☐ I ask the court to approve my proposed *Visitation Attachment* (form GDN M 104).
(*Only parents and children age 12 or older can propose Visitation.*)

5. Parents' Decision-making

If the court appoints a guardian, (*check one*):

- ☐ I have no request about parents' decision-making.
- ☐ I agree with what the *Petition* proposed about parents' decision-making.

- ☐ I disagree with what the *Petition* proposed about parents' decision-making. I ask the court to order decision-making as follows (*who should be allowed to make what decisions*):

6. Access to Records

If the court appoints a guardian, (*check one*):

- ☐ I have no request about access to records.
- ☐ I agree with what the *Petition* proposed about access to records.
- ☐ I disagree with what the *Petition* proposed about access to records. I ask the court to order the following (*who should be allowed to access what records*):

7. Support, Insurance, and Taxes

- ☐ Does not apply. The *Petition* did not ask for child support.
- ☐ The *Petition* asked for child support and/or health insurance to be ordered.

I ☐ object ☐ agree because: _____

- ☐ **Tax Issues** – I ask the court to order: (*name*) _____
has the right to claim the children as dependents for purposes of personal tax exemptions and associated tax credits on our tax forms.

8. Restraining Order

- ☐ Does not apply. The *Petition* did not ask for a Restraining Order.
- ☐ The *Petition* asked for a Restraining Order against (*name/s*) _____.

I ☐ object ☐ agree because: _____

Important! If you want a Protection Order, you must file a Petition for Protection Order, form PO 001. You must file your Petition for Protection Order as a **separate case**. Ask the court clerk to relate (link) the protection order case together with this guardianship case.

9. Fees and Costs

- ☐ No request.
- ☐ Order who should pay for court costs, Guardian ad Litem fees, Court Visitor fees, lawyer fees, and other reasonable fees.

10. Other Requests, if any:

Party filing objection fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have provided on this form (including any attachments) are true. ☐ I have attached (#): _____ pages.

Signed at (*city and state*): _____ Date: _____



Sign name here *Print name*

The following is my contact information:

Email: _____ *Phone (Optional)*: _____

I agree to accept legal papers for this case at (*check one*):

☐ my lawyer's address, listed below.

☐ the following address (*this does **not** have to be your home address*):

Street Address or PO Box *City* *State* *Zip*

☐ Email: _____

Lawyer (if any) fills out below:



Lawyer signs here *Print name and WSBA No.* *Date*

Lawyer's Street Address or PO Box *City* *State* *Zip*

Email (*if applicable*): _____